



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 14 1999

DOT-E 9677
(FIFTH REVISION)

EXPIRATION DATE: December 31, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Coastal Manufacturing, Inc.
Hialeah, FL
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain hydrochloric acid solutions and sulfuric acid solutions in non-DOT specification polyethylene bottles overpacked in an open-top polyethylene drum. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.202.
5. BASIS: This exemption is based on the application from Coastal Manufacturing, Inc. dated November 13, 1998, submitted in accordance with 49 CFR 107.107.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Hydrochloric acid not over 32% strength/ Hydrochloric acid, solution	8	UN1789	II
Sulfuric acid with not more than 38% acid	8	UN2796	II

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7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - A non-DOT specification polyethylene bottle meeting the test requirements prescribed in paragraph 7.b. below. No more than 30 one-gallon bottles to be overpacked in a 55 gallon polyethylene drum. Each drum must be designed and tested according to the specifications of a UN1H2 drum to the Packing Group I or II performance level. Bottles shall be capped with 38 mm childproof, leakproof closures and arrayed 10 per layer in three-tiers within the drum. The drum may be shipped without a lid. Each tier shall be separated by 3/8" thick sheet of polyethylene, and the general arrangement of bottles within the drum shall be as depicted in photographs, drawings and specifications included in petitioner's application.

b. TESTING - Non-DOT specification polyethylene bottles overpacked as prescribed in paragraph 7.a must be tested as follows without breakage or leakage:

i. At least three random sample bottles for each 1000 bottles produced by each blow-molding machine must be filled to 98 percent of capacity with water, and dropped from a height of 4 feet onto a solid unyielding surface, so as to drop diagonally on the top edge or any other part which is weaker.

ii. At least once each month, at least three random sample bottles must be filled to 98 percent capacity with a liquid which is compatible with polyethylene, and which is liquid at 0°F, and dropped from a height of 4 feet onto a solid unyielding surface, on any part of the bottle. Immediately prior to the test, the bottle and its contents must have been at a temperature of 0°F or lower for at least 24 hours.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation by private motor carrier provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

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b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. Shipments are limited to transportation by private carrier.

d. The polyethylene drum and cart must be secured against movement within the transport vehicle.

e. The bottles authorized for shipment under the terms of this exemption may not be refilled.

f. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

g. MARKING - The outside of each polyethylene drum or cart must be plainly and durably marked "DOT-E 9677."

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 107.700 through 107.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

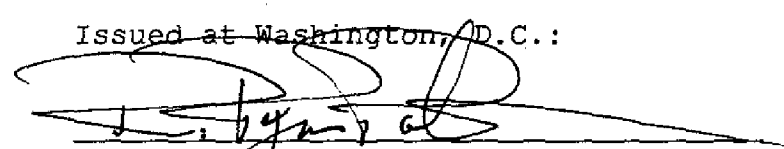
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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for 
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

1/14/99
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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